

MARTIN v FRASER

22CV46236

PLAINTIFF'S MOTION FOR TERMINATING SANCTIONS

On August 12, 2022, Dylan Martin ("Plaintiff") filed a verified complaint for partition against Taylor Fraser ("Defendant").

Now before the Court is Plaintiff's motion for terminating sanctions against Defendant based on her failure to comply with court-ordered discovery. The Court grants Plaintiff's request for judicial notice of earlier rulings.

On March 18, 2024, the Court ordered Defendant to serve verified answers to Plaintiff's written discovery by April 21, 2024. Plaintiff's served the Notice of Entry on March 26, 2024. (Declaration of Brian Chavez-Ochoa ("Chavez-Ochoa Decl.") ¶ 2). As of the filing of the motion, Defendant has failed to provide any responses. (*Id.* ¶ 3.)

A motion for terminating sanctions is governed by the Civil Discovery Act. (Code of Civil Procedure §2023.030(d).) Termination may be imposed as a sanction under the Discovery Act only after (1) a court order has been issued, compelling the party to comply with a discovery request; (2) the party has disobeyed the order; and (3) the party has been given an opportunity to be heard regarding the order. (*J.W. v. Watchtower Bible & Tract Society of New York, Inc.* (2018) 29 Cal. App. 5th 1142, 1167.) A terminating sanction is appropriate only when a party's failure to obey a court order prejudiced the opposing party. (*Morgan v. Ransom* (1979) 95 Cal. App. 3rd 664, 669.)

Failure to respond to discovery and to comply with a judge's court orders compelling discovery are sufficient to impose a terminating sanction. (*Jerry's Shell v. Equilon Enterprises, LLC* (2005) 134 Cal. App. 4th, 1058, 1069.) Further, if the party has committed severe discovery abuses, a judge's denial of terminating sanctions may be an abuse of discretion. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 992.)

This court ordered verified answers, without objection, to plaintiff's discovery requests. Defendant has disobeyed the order. Defendant did not request a hearing on the tentative ruling granting the motion to compel. Defendant has neither provided any responses nor sought any kind of extension. Defendant has had ample time to respond to the requests and this Court's order. Defendant's willful failure to respond and to comply with this Court's order has prejudiced Plaintiff who is unable to move forward with this case without Defendant's participation.

In light of the above, the Court **GRANTS** Plaintiff's motion. The Court orders that the Answer filed on or about September 21, 2022 is stricken, and enters judgment by default in Plaintiff's favor. Plaintiff is directed to contact the clerk's office to schedule a prove up hearing on Department 2's Friday 9:00 a.m. calendar.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff shall submit a formal Order in compliance with this Ruling.

CONNOLLY v DE LA CRUZ

23CV46549

PLAINTIFF'S MOTIONS TO COMPEL FURTHER RESPONSES TO DISCOVERY

This civil action stems from a dispute over easement rights between Mark V. Connolly ("Plaintiff") and Francisco de la Cruz ("Defendant"). Before the Court are Plaintiff's three separate motions to compel further responses to: 1) form interrogatories, 2) special interrogatories, and 3) requests for production. The motions are similar in form and substance and accordingly, the court addresses the motions in tandem.

For the reasons set forth below, Plaintiff's motions are granted.

I. Factual and Procedural Background

A. Background Facts

Plaintiff owns APN parcels 048-025-034 and 050-002-120, commonly and collectively referred to as Cain Ranch (and hereinafter referred to as "the Ranch"). The Ranch was previously burdened by a 16.5 foot prescriptive easement belonging to Linkletter Properties for ingress and egress to adjacent property (with the right to erect a fence with a gate), but Plaintiff maintained a co-equal easement over a similar strip for cattle grazing and herding. According to Plaintiff, the dueling co-equal easements were unburdened by judgment, merger and eventual extinguishment. Despite the loss of said easement, Defendant accessed the strip and removed a portion of the perimeter fence restraining cattle from roaming free.

Defendant owns APN 048-051-034 and is the elected road manager at Valley Hills Estates. According to Defendant, the aforementioned easement overlaps a 60-foot right of way in the referenced subdivision parcel map. Defendant filed a cross-complaint to allow for the removal of naturally occurring obstructions due to a tree falling and man-made obstruction of a gate and post within the easement.

B. Discovery and Responses

On December 29, 2023, Plaintiff propounded form and special Interrogatories and request for production of documents. After some delay, on February 16, 2024 Defendant eventually responded without objection via email. (Declaration of Mark V. Connolly ("Connolly Decl.") attached to each motion, ¶ 6.) Thereafter counsel engaged in a meet and confer and, on March 12, 2024, entered into a stipulation that: 1) Defendant would serve supplemental or amended responses to the all discovery by